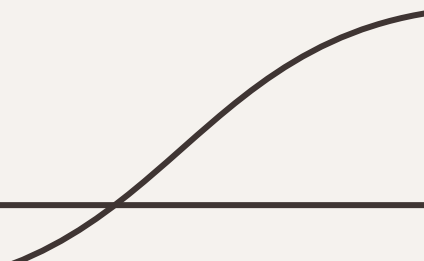




Restorative Justice in the Juvenile Justice System

By: Wendy Guo



Overview

Juvenile justice is a salient public policy issue, and states differ in how they combat young people committing crimes and the aftermath. I am conducting a field survey of restorative justice in the United States, but then specifically in Massachusetts, in order to determine whether the current RJ systems are effective, and if not what direction the state can move in order to support children and youth in their developmental periods. Additionally, I will be exploring how restorative justice can have the potential to end mass incarceration amongst young people through creating support systems that can preserve through adulthood.

Process & Approach

- I am using search engines such as google scholar and tripod to look for studies regarding the scope of restorative justice nationwide- some studies I am including are from other countries such as the UK
- Looking at Massachusetts government data and studies that have been prepared for the state to measure efficacy
- Primarily looking at recidivism as the measure of success, as children who do not reoffend do not become involved again with the criminal or juvenile justice system

Early Insights

- I have focused on Massachusetts as a example of how a progressive and pioneer in juvenile justice state still produces significant disparities and concerns for policy
- The state ranked 46th of all states on youth incarceration rates with 48 incarcerated per 100,000 youth in 2021. (*Racial Disparities in Youth Incarceration Persist*, 2021)
- Despite MA's low juvenile incarceration rates overall, they are ranked 9th on Black-white disparity, where black youth are 9.22 times more likely to be incarcerated in comparison to a white youth. (*Racial Disparities in Youth Incarceration Persist*, 2021)
- Massachusetts then ranks 1st on Latinx-white disparity, where a latinx youth is 4 times more likely to be incarcerated in the state. (Sickmund et al., 2019)

Early Insights

- Massachusetts' Department of Youth Services (DYS), the agency responsible for the state's juvenile justice system spends millions of dollars each year to address youth crime and the aftermath.
- DYS's budget for their 2023 fiscal year was \$176,407,198 dollars. (Enacted budget for Department of Youth Services: Summary FY23 budget)
- The budget for "Non-Residential Services for Committed Population", which was "for supervision, counseling and other community-based services provided to committed youths in nonresidential care programs of the department of youth services"
- \$29,533,937 for "Residential Services for Detained" such as "pretrial detention programs, including purchase-of-service and state-operated programs"
- Lastly accounting for about 63% of the fiscal year budget, is \$111,140,240 for "Residential Services for Committed Population" which are "secure facilities, including purchase-of-service and state-operated programs incidental to the operations of the facilities; provided, that funds shall be expended to address the needs of the female population; and provided further, that funds shall be expended for suicide prevention services." (Enacted budget for Department of Youth Services: Summary FY23 budget)

Early Insights

- Roca: a community-based organization that “seeks out young people who are at risk of engaging in violent acts, engages them in meaningful relationships that build trust, offers them opportunities to learn a set of skills and competencies that might lead to behavioral change, and support them in living into their own dreams.” (*Our intervention model: Systems Navigation & Systems Partners*, 2025)
Roca uses peacemaking circles as a way for conflict resolution involving justice-impacted youth, but also as a method for police officers and probation officers to humanize youth instead of labeling them as criminals. (Kania & Kendall)
- C4RJ: a nonprofit partnered with a great number of Eastern and Western police departments who offer services to youth referred. The police departments collaborate with C4RJ representatives to conduct circles to “empowering victims who seek a voice in the justice process, providing an intermediate response between letting someone ‘off the hook’ for wrongdoing and launching full criminal prosecution, retaining police officer involvement in cases to hold offenders meaningfully accountable, and strengthening police relationships within their communities.” (*Our partnerships*)

Early Insights

- Roca: has transformative justice elements that are supporting its young people, less access across the state -> community-based involvement leading to greater mental health well being and reeducation in recidivism

-> greater diversity in the young people admitted in their program, 94% identified as Black, Latina, or mixed race and ethnicity

-> In Roca's most recent report summary in 2025, for participants who have been enrolled for 2 years or longer, 92% did not reoffend and 99% were not reincarnated. 99% improved their behavioral health, and 90% improved their emotional regulation. (*Outcomes 2026*)

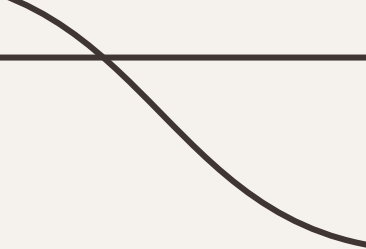
- C4RJ: mostly on the administrative side, young people involved in crimes do circles, pay back any financial losses, volunteer at placement sites (retail or nonprofits), greater access across the state -> JJ system involvement can increase possibility of becoming impacted

-> less diversity in the young people admitted, the cases the organization worked on in the fiscal year of 2018, involved 65% White, 15% Black, 10% Asian, 9% Hispanic/Latino, and 1% Middle Eastern or North African offenders. (*A year of impact at a glance Annual Report July 2018–June 2019* 2019)

-> less recent data, last recidivism report was in 2016 with a rate of 16%, but is less than then a nationwide 18% for restorative justice programs in the U.S.

Directions and Next Steps

- I would like to incorporate more analysis of whether restorative justice is feasible as an abolitionist strategy
- Incorporating transformative justice to determine its efficacy and how TJ fits into the framework of restorative justice
- Including restorative justice critics and studies that have had negative or inconclusive results
- Determining RJ's feasibility in a political climate
- Supplement Massachusetts RJ with greater diversion tactics
- Researching additional states and their RJ programs



Thanks!
Questions?
